

25STCV29779 25STCV29779

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-09-10

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Case Number: 25STCV29779 Hearing Date: September 10, 2026 Dept: 508

Superior Court
of California

County of Los
Angeles

Department 508

DIRECTEX,
INC. dba DIRECTEX,

Plaintiff,

vs.

VELVET
APPPAREL, LLC, dba VELVET BY GRAHAM & SPENCER, et al.,

Defendants.

Case No.:

25STCV29779

Hearing Date:

September 10, 2026

Hearing

Time: 8:30 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT VELVET

APPAREL, LLC DBA VELVET BY GRAHAM & SPENCER'S MOTION FOR LEAVE TO FILE A
FIRST AMENDED CROSS-COMPLAINT

AND RELATED CROSS-ACTION

Background

On October 10, 2025, Plaintiff DirecTex, Inc. dba DirecTex ("DirecTex") filed this action against Defendants Velvet Apparel, LLC dba Velvet by Graham & Spencer ("Velvet") and Pivot Grows, LLC (jointly, "Defendants") alleging three causes of action for (1) breach of written contract, (2) breach of implied-in-fact contract, and (3) open book account.

On January 8, 2026, Velvet filed a Cross-Complaint against DirecTex, alleging five causes of action for (1) breach of contract, (2) accounting, (3) fraud, (4) breach of the implied covenant of good faith and fair dealing, and (5) unfair business practices [B&P §17200].

Velvet now moves for leave to file
a first amended cross-complaint.

Discussion

On August 27, 2026, DirecTex's
opposing papers were due. However, DirecTex did not file an opposition, and on August 31, 2026, Velvet filed a notice of non-receipt of opposition.

Thereafter, on September 2, 2026,
DirecTex filed an opposition. DirecTex includes a declaration from DirecTex's counsel. DirecTex's counsel attests that "[t]he deadline to file DirecTex's Opposition was on August 27, 2026. Due to a calendaring error, however, the Opposition was not filed until September 2, 2026, five days after the due date and eight days before the hearing on the Motion. As soon as I realized that the

Opposition was due to be filed, I caused the filing of the Opposition. Our failure to file the Opposition on August 27, was due entirely to inadvertence, mistake, and/or excusable neglect.” (Brutzkus Decl., ¶ 4.)

In light of DirecTex’s declaration attesting to attorney mistake for the failure to timely file the opposition, the Court will consider the opposition.

However, as of September 9, 2026, Velvet did not file a reply. To avoid prejudice, the Court will discuss a new hearing date with the parties so that Velvet may reply to the opposition.

Conclusion

Based on the foregoing, the Court continues the hearing on Velvet’s motion for leave to file a first amended cross-complaint motion to _____ at 10:00 a.m. in Dept. 508. Velvet is ordered to file its reply five days before the new hearing date, pursuant to the timeline prescribed by Code of Civil Procedure section 1005, subdivision (b).

DirecTex is ordered to give notice of this Order.

DATED: September
10, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court